

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Diana Keam	Team: Team # 8	CCRB Case #: 200616039	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Monday, 11/27/2006 7:10 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/27/2008	Precinct: 61
Date/Time CV Reported Tue, 11/28/2006 9:18 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 12/01/2006 12:23 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SSA James Hansen	03956	894047	061 PCT
2. POM Sean Carlton	07145	902842	061 PCT
3. POM Matthew Harrison	17121	930323	061 PCT
4. An officer			061 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SSA James Hansen	Abuse: Sgt. James Hansen stopped § 87(2)(b)	A . Exonerated
B . POM Sean Carlton	Abuse: PO Sean Carlton stopped § 87(2)(b)	B . Exonerated
C . SSA James Hansen	Force: Sgt. James Hansen used physical force against § 87(2)(b)	C . Exonerated
D . POM Sean Carlton	Force: PO Sean Carlton used physical force against § 87(2)(b)	D . Exonerated
E . An officer	Force: An officer used a chokehold against § 87(2)(b)	E . Unfounded
F . POM Matthew Harrison	Abuse: PO Matthew Harrison searched the car belonging to § 87(2)(b)	F . Unsubstantiated

Synopsis

On November 28, 2006, § 87(2)(b) and § 87(2)(b) called IAB (log #06-40320) to report that on November 27, 2006, § 87(2)(b) § 87(2)(b) and § 87(2)(b)'s cousin, called them from an unspecified hospital and stated that he had been arrested and beaten by plainclothes officers from the 61st Precinct. § 87(2)(b) identified one of those officers as Sgt. Hansen. § 87(2)(b) and § 87(2)(b) did not witness the incident.

On November 29, 2006 at 10:28AM, § 87(2)(b) called IAB (log #06-40499) and reported that on November 27, 2006, two officers arrested and beat her boyfriend, § 87(2)(b) § 87(2)(b) suffered injuries to his shoulder and had bruising and scuffmarks about his face, cheeks, and forehead. The scuffmarks were allegedly from an officer's boot. § 87(2)(b) stated that § 87(2)(b) was taken to § 87(2)(b) on § 87(2)(b) and that he was going to § 87(2)(b) again on § 87(2)(b). § 87(2)(b) did not witness the incident. The CCRB later determined that § 87(2)(b) § 87(2)(b) and § 87(2)(b) were one in the same.

At 9:36PM on November 29, 2006, IAB officers spoke with § 87(2)(b) via telephone. He stated that on November 27, 2006, two white male officers in plainclothes stopped him (Allegations A and B), pushed him up against a wall and started punching him as he exited the elevator and entered the lobby of § 87(2)(b) in Brooklyn (Allegations C and D). The officers, identified through investigation as Sgt. James Hansen and PO Sean Carlton of the 61st Precinct, then threw § 87(2)(b) to the floor and kicked him. One of the officers choked § 87(2)(b) causing him to defecate on himself (Allegation E). The officers then placed § 87(2)(b) in handcuffs. Because they believed that § 87(2)(b) had swallowed narcotics, the officers called for an ambulance. As § 87(2)(b) was being led from the lobby of the building and toward the ambulance, he saw an officer, identified through investigation as PO ##### Harrison of the 61st Precinct, enter and search his vehicle (Allegation F). § 87(2)(g) § 87(2)(g) it is recommended that Allegations A and B be exonerated. § 87(2)(g) it is recommended that Allegations C and D be exonerated. § 87(2)(g) it is recommended that Allegation E be unfounded. § 87(2)(g) it is recommended that Allegation F be unsubstantiated.

Summary of Complaint

§ 87(2)(b) is a § 87(2)(b). On the date of incident, § 87(2)(b) was wearing a red Yankees Hat, a red hoodie, a white long-john shirt, black pants, and wheat-colored Timberland boots. He also had a folded gold chain with a Jesus on it around his neck. At the time of his CCRB interview, § 87(2)(b) § 87(2)(b) provided five statements regarding this incident: one at § 87(2)(b) on § 87(2)(b) (enc. 26a-o), one at § 87(2)(b) (enc. 28a-n) and one to IAB on November 29, 2006 (enc. 13), one to the CCRB via telephone on December 4, 2006 (enc. 14), and one at the CCRB on December 5, 2006 (enc. 15a-k). § 87(2)(b), § 87(2)(g)

§ 87(2)(b) stated that on November 27, 2006, at approximately 6:45PM he drove to § 87(2)(b) in Brooklyn. § 87(2)(b) was headed to that location to buy a \$5.00 pack of cigarettes from a guy named § 87(2)(b) who lives in an unknown apartment on the third floor. § 87(2)(b) double-parked his vehicle near a fire hydrant in front of the building. He then entered the building and took the elevator to the third floor. He did not notice anyone else in the hallway. § 87(2)(b) knocked on § 87(2)(b) door, went into the apartment, and purchased the cigarettes. § 87(2)(b) stated that he has purchased cigarettes from § 87(2)(b) several times before and that § 87(2)(b) had the cigarettes waiting for him. About three minutes after he had entered the building, § 87(2)(b) got back on the elevator and went down to the lobby. As the elevator doors opened, the door to the stairwell, directly across from the elevator, also opened. Two white males in plainclothes came through the door and rushed toward § 87(2)(b). The males immediately grabbed § 87(2)(b) and threw him up against a wall to the left of the elevator (Allegations A and B). § 87(2)(b) stated that he thought he was going to be robbed, so he folded up his body with his head toward his chest and his hands around his head. The two

males began to punch § 87(2)(b) in the torso and on the portion of his hands that were covering his head (Allegations C and D). He stated that this lasted for about 15 to 20 seconds. The two males then pulled § 87(2)(b) to the floor and he landed face down. § 87(2)(b) immediately curled up his body again. The males continued to punch and kick § 87(2)(b) on the left side of his face and the right side of his torso. This lasted for a minute or so. As the males were punching and kicking him, § 87(2)(b) heard the word “officer” and some sort of code come over a radio that one of the males was wearing. § 87(2)(b) then realized that the males were police officers and he stretched out his body with his hands above his head. One of the officers then kicked § 87(2)(b) in the left side of his face and the other took § 87(2)(b) s throat in the crook of his arm and began to choke him (Allegation E). § 87(2)(b) stated that he was not able to breathe, so much so that he defecated on himself. After about 15 to 20 seconds, the officer released § 87(2)(b) and the officers placed him in handcuffs. The officers then kicked § 87(2)(b) in the face a couple more times and then picked him up off the ground. § 87(2)(b) stated that at no point during this interaction did the officers speak to him or issue him any instructions. As the officers picked him up, § 87(2)(b) heard sirens outside. He stated that his nose and lip were bleeding, his right arm was sore, he had abrasions to his right knee, and could feel the left side of face swelling up. § 87(2)(b) told the officers that they had made him defecate on himself and PO1 said, “That’s good. Now you can tell your friends that the police kicked the shit out of you.” The officers then searched § 87(2)(b) and took his keys, his hat and wallet, and picked up pieces of his gold chain that was now broken from the floor. The officers then escorted § 87(2)(b) out of the building. § 87(2)(b) described PO1 as a white male, about 6’2” tall, athletic build, brownish hair and a mustache. § 87(2)(b) stated that he heard other people call him Sgt. Hansen. PO2, identified through investigation as PO Sean Carlton, was a white male, about 5’10” tall, chubby, with black hair.

Outside of the building, there were about nine officers in uniform. One of those officers, identified through investigation as PO Matthew Harrison, was standing on the driver’s side of § 87(2)(b) s car putting a parking ticket under the windshield wiper. PO Harrison, a stocky white male with glasses, asked § 87(2)(b) if that was his car and § 87(2)(b) said “yes”. As this was taking place, Sgt. Hansen and PO2 Carlton were escorting § 87(2)(b) toward an ambulance that had now arrived. Sgt. Hansen and PO Carlton told § 87(2)(b) that they had seen him swallow something and were going to take him to the hospital to get his stomach pumped. § 87(2)(b) told the CCRB that he had not swallowed anything and that he had not requested medical treatment. As § 87(2)(b) got into the ambulance, he saw PO Harrison open the driver’s side door of his car and look through the cup holders, behind the visor, under the seats, and in the glove compartment (Allegation F). § 87(2)(b) believed that either Sgt. Hansen and PO Carlton gave PO Harrison the keys to his car or they unlocked it using his keyless entry remote. In his phone statement on December 4, 2006, § 87(2)(b) did not allege that his vehicle had been searched, however he did make that allegation to IAB on November 29 and to the CCRB on December 5.

The ambulance transported § 87(2)(b) to § 87(2)(b). § 87(2)(a) PHL § 18(6)

From the hospital, § 87(2)(b) was taken to the 61st Precinct and then later to Central Booking. At some point, § 87(2)(b) s vehicle was taken to the 61st Precinct and § 87(2)(b) went and picked it up. § 87(2)(b) was ultimately charged with § 87(2)(b)

§ 87(2)(b) denied having any narcotics at the time of his arrest, but stated that he did have a thin black box-cutter about five or six inches long in his pocket.

On § 87(2)(b), § 87(2)(b) was having severe pain in his right shoulder and his girlfriend called 911. An ambulance arrived and again took § 87(2)(b) to § 87(2)(b). § 87(2)(b) told the EMTs who transported him that he “was arrested on Monday but was assaulted in the process by [the police]. § 87(2)(b) was seen at the hospital after the incident but according to [him], wasn’t examined for his injuries...(enc. 28b)”. § 87(2)(a) PHL § 18(6)

Results of Investigation

Officer Statements

Sgt. Hansen

Sgt. James Hansen is a § 87(2)(b)-old white male with blonde hair and blue eyes. He is § 87(2)(b). Sgt. Hansen has been a member of the New York City Police Department for the last 18 years. On March 1, 2007, he gave the following statement at the CCRB.

On November 27, 2006, Sgt. Hansen worked from 3:00PM to 11:44PM assigned to Anti-Crime within the 61st Precinct. He was dressed in plainclothes and assigned to an unmarked black Impala, RMP 8130. His partner that day was PO Carlton. Sgt. Hansen's memo book entry regarding the incident (enc. 16a-c) states:

19:10 1 under by PO Carlton for CPCS/Assault

Sgt. Hansen's Witness Statement to PO Carlton's LOD Injury Report (enc. 17)

On November 27, 2006, Sgt. Hansen wrote the following witness statement regarding PO Carlton's Line of Duty Injury. "PO Carlton was placing a male under arrest, the male did struggle with the officers refusing to be handcuffed causing Carlton to fall to the ground breaking his right hand."

CCRB Statement (enc. 18a-c)

§ 87(2)(e), § 87(2)(f)

§ 87(2)(e), § 87(2)(f)

After working out the plan, he officers went to § 87(2)(b) and waited in the § 87(2)(b) floor stairwell. From the stairwell, the officers could see into the hallway of apartments on the fourth floor and could also see through a glass pane to the outside entrance to the building. PO Carlton watched the § 87(2)(b) floor hallway, while Sgt. Hansen watched the entrance to the building. § 87(2)(e), § 87(2)(f) Sgt. Hansen saw a short and stocky black male about 5'7" tall enter the building and said to PO Carlton "I think this is our guy." PO Carlton then saw a man enter the fourth floor apartment. § 87(2)(e) § 87(2)(f) The dealer was still in the apartment. § 87(2)(e), § 87(2)(f)

Sgt. Hansen and PO Carlton then took the stairs down to the lobby and waited there for § 87(2)(b). The § 87(2)(e), § 87(2)(f) The officers were not sure if § 87(2)(b) would take the stairs or the elevator, but decided to wait in the stairwell. A minute or so later, § 87(2)(b) came off of the elevator and entered the lobby. § 87(2)(b) known to the CCRB as § 87(2)(b) had his left hand clenched and had what Sgt. Hansen believed to be crack in his fist. Sgt. Hansen confirmed that the man he saw step off of the elevator was the same man he had seen entering the building earlier. The officers identified themselves and said, "Police! Don't Move! What do you have in your hand?" § 87(2)(b) saw the officers and started coming toward them and swinging his fists. The officers

were positioned between § 87(2)(b) and the exit to the building. Sgt. Hansen thought that § 87(2)(b) was trying to make a run for the door. The officers took a few steps back to see what § 87(2)(b) was going to do. § 87(2)(b) put his left fist to his mouth and swallowed the crack. § 87(2)(b) then reached his right hand toward his jacket pocket. Sgt. Hansen grabbed one of § 87(2)(b)'s arms and PO Carlton grabbed the other. § 87(2)(b) pulled away. The officers then lost their balance and Sgt. Hansen, PO Carlton, and § 87(2)(b) all fell to the floor. § 87(2)(b) struggled and Sgt. Hansen called for assistance. After a couple minutes, the officers were able to handcuff § 87(2)(b). Other officers responded, but by that time § 87(2)(b) was already in handcuffs. Neither Sgt. Hansen nor PO Carlton punched or kicked § 87(2)(b). Neither officer made any comment about kicking the shit out of § 87(2)(b). Sgt. Hansen stated that he did not choke § 87(2)(b) and did not come into contact with his neck while trying to restrain him. When the officers picked § 87(2)(b) up off of the floor, he had a bruise on his face. He did not complain of any pain or injury or ask for medical treatment. A search incident to arrest produced a box-cutter with a razor blade on the end of it secreted in § 87(2)(b)'s jacket pocket. Because it looked as though § 87(2)(b) had swallowed a large quantity of crack, the officers called for an ambulance. PO Carlton, who broke his hand at some point during the incident, also rode in the ambulance with § 87(2)(b). The officers later learned that § 87(2)(b) had defecated on himself and they called a family member to bring him a change of clothes at the hospital.

When Sgt. Hansen was asked about a vehicle that § 87(2)(b) had driven to the scene, he said that § 87(2)(b) had left his vehicle double-parked outside of § 87(2)(b). When he was in the ambulance, § 87(2)(b) asked an officer to take the vehicle to the precinct. Sgt. Hansen was not sure which officer drove the vehicle to the precinct, but knew that it ended up there. He did not believe that the vehicle was searched at the scene or at the precinct. Sgt. Hansen knew that the vehicle had not been vouchered, so he felt that it probably had not been searched either.

PO Carlton

PO Sean Carlton is a § 87(2)(b) old white male with brown hair and hazel eyes. He is § 87(2)(b). PO Carlton has been a member of the New York City Police Department for the last 16 years. On March 1, 2007, PO Carlton gave the following statement at the CCRB.

On November 27, 2006, PO Carlton worked from 3:00PM to 11:35PM assigned to Anti-Crime within the 61st Precinct. He was dressed in uniform and assigned to an unmarked RMP 8130 along with Sgt. James Hansen. PO Carlton's memo book entry regarding the incident (enc. 19a-b) states:

19:19 1 under § 87(2)(b) § 87(2)(a) 160.50

19:20 1 perp, 1 MOS en-route to § 87(2)(b)

§ 87(2)(b)'s Arrest Report (enc. 20a-b)

PO Carlton prepared the report documenting § 87(2)(b)'s arrest (§ 87(2)(b)). The narrative of the report states, § 87(2)(a) 160.50

§ 87(2)(b) PO Carlton noted that force was used to restrain § 87(2)(b)

AIDED Report (enc. 21a-b)

PO Carlton prepared the AIDED Report documenting his visit to § 87(2)(b) for the injuries he sustained while arresting § 87(2)(b). The narrative of the report states, "At time and place of occurrence, AIDED (MOS) sustained § 87(2)(b) while trying to subdue a perpetrator."

Line of Duty Injury Report (enc. 22a-c)

PO Carlton's Line of Duty Report notes that he sustained two broken bones to his right hand on November 27, 2006. In describing how that injury was sustained PO Carlton stated, "I was placing a perpetrator under arrest. Perpetrator resisted arrest. Perpetrator struggled with Sgt. Hansen and me, refusing to be handcuffed. I fell to the ground with the perpetrator, § 87(2)(b)

CCRB Statement (enc. 23a-c)

§ 87(2)(e), § 87(2)(f)

§ 87(2)(b), § 87(2)(e), § 87(2)(f)

About ten or fifteen minutes later, PO Carlton and Sgt. Hansen went to § 87(2)(b) and waited in the § 87(2)(b) floor stairwell. Sgt. Hansen watched the entrance to the building through a window in the stairwell and PO Carlton watched the § 87(2)(b) floor apartments. § 87(2)(e), § 87(2)(f)

§ 87(2)(b) The apartment was about six feet from the stairwell where PO Carlton was standing. § 87(2)(e), § 87(2)(f)

§ 87(2)(b) PO Carlton stated that he and Sgt. Hansen had heard of Q on the street and had a rough idea of who he was. A few minutes later, Sgt. Hansen saw a male enter the building and said to PO Carlton, "I think this is our guy." Shortly afterward, PO Carlton saw a black male, about 5'7" tall and 180lbs with a slight goatee or mustache and a red baseball cap come to the fourth floor and enter the apartment that the informant had gone into. He had not seen any other individuals enter the apartment.

§ 87(2)(e), § 87(2)(f)

§ 87(2)(b) The officers were not sure if he would come downstairs using the stairs or the elevator, so they decided to wait in the stairwell. PO Carlton stated that he and Sgt. Hansen intended to question him about what had taken place in the apartment.

Two minutes later, the dealer, known to the CCRB as § 87(2)(b) exited the elevator and entered the lobby. The officers approached him, identified themselves, and said, "Let me see your hands!" § 87(2)(b) was making a tight fist with his left hand. The officers could not see what was in his hand, but believed it to be crack. § 87(2)(b) started to stuff the contents of his hand into his mouth. At the same time, he headed toward the front door of the building. The officers, however, were in the way. § 87(2)(b) started swinging punches at the officers and fighting with them. § 87(2)(b) punched PO Carlton and PO Carlton punched him once in the head. § 87(2)(b) and PO Carlton exchanged a few more punches. As he fought with the officers, § 87(2)(b) kept trying to reach toward his right front jacket pocket. The officers were concerned, because they did not know what he was reaching for. The officers finally grabbed § 87(2)(b) by the arms, turned him around, and slammed him down on his stomach. The officers called for backup as they tried to subdue § 87(2)(b). After a minute or two, Sgt. Hansen placed handcuffs on § 87(2)(b). The officers then picked him up and noticed that he had one or two small bruises on his cheek and forehead. Following a search incident to his arrest, the officers found a box-cutter with a razor blade in § 87(2)(b)'s right front jacket pocket. No narcotics were recovered. PO Carlton stated that neither he nor Sgt. Hansen kicked § 87(2)(b) or made any comment about kicking the shit out of him. Neither officer choked § 87(2)(b) or came into contact with his neck. Sgt. Hansen did not punch § 87(2)(b). § 87(2)(b) did not complain of shoulder pain. PO Carlton stated that he used the minimum amount of force necessary to restrain § 87(2)(b). The investigator showed PO Carlton § 87(2)(b)'s arrest photo, which depicts bruising to the left side of the face. PO Carlton said that the photo was an accurate representation of the injuries § 87(2)(b) sustained during the incident.

Numerous officers arrived to assist PO Carlton and PO Hansen, but by the time the officers arrived, § 87(2)(b) had already been handcuffed. The officers called for an ambulance, because they believed that § 87(2)(b) had swallowed what appeared to be a large quantity of crack. § 87(2)(b) did not complain or any pain or injury and did not ask for medical treatment. In fact, § 87(2)(b) said he did not want to go to the hospital. § 87(2)(b) was taken to § 87(2)(b) Hospital. PO Carlton accompanied him in the ambulance. At some point during the struggle, PO Carlton injured his right hand, so he also went to the hospital to be treated.

When PO Carlton was asked if knew that § 87(2)(b) had driven a vehicle to the scene, he said “yes”. Before the ambulance pulled away, § 87(2)(b) mentioned that he had left his vehicle double-parked near the building and he asked an officer to move it for him. PO Carlton was not sure which officer § 87(2)(b) spoke to. PO Carlton never saw the vehicle or came into contact with it. He stated that the vehicle was not vouchered, so he believed that an officer had taken the vehicle to the precinct and that one of § 87(2)(b)s family members had come to pick it up. PO Carlton did not believe that § 87(2)(b)s vehicle was searched at the scene or at the precinct.

PO Harrison

PO Matthew Harrison is a § 87(2)(b)-old white male with brown hair and brown eyes. He is § 87(2)(b). PO Harrison has been a member of the New York City Police Department since July 2002. On February 27, 2007, PO Harrison gave the following statement at the CCRB (enc. 25a-b).

On November 27, 2006, PO Harrison worked from 3:00PM to 11:35PM assigned to Patrol Sector G within the 61st Precinct. He was dressed in uniform, assigned to marked RMP 1563, and his partner that day was PO Coffey. PO Harrison did not have any memo book entries regarding this incident.

PO Harrison and PO Coffey responded to a call for assistance at § 87(2)(b). The officers who had called for assistance had been fighting with an individual. The officers and the subject were standing in the lobby of § 87(2)(b). By the time PO Harrison and his partner arrived, the subject had already been handcuffed. The subject was bleeding from the nose and face area and PO Carlton was complaining of pain to his hand. When PO Harrison and the other officers left the building, he noticed several patrol cars double-parked in front of the building. A lot of officers had responded to the call for assistance. PO Harrison noticed a civilian vehicle blocking a fire hydrant. He could not recall what the vehicle looked like. Because the vehicle was parked at a hydrant, PO Harrison issued a parking summons. At the time he issued the summons, PO Harrison did not know who owned the vehicle and did not speak to anyone regarding the vehicle. PO Harrison did not open the vehicle or search it or see other officers do so. After issuing the parking summons, PO Harrison and his partner resumed patrol. He did not know what happened to the vehicle after he left. Sometime after the incident, PO Harrison learned that the vehicle for which he had issued the parking summons belonged to the subject.

Medical Records

Ambulance Call Report for § 87(2)(b) (enc. 26c-d)

§ 87(2)(a) PHL § 18(6)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(b) *Emergency Department Form for § 87(2)(b) (enc. 26e)*

§ 87(2)(a) PHL § 18(6)
§ 87(2)(b)
§ 87(2)(b)

Medical Treatment of Prisoner Form (enc. 27)

At 7:20PM on November 27, 2006, § 87(2)(b) was transported to § 87(2)(b) Hospital. The narrative of the form states, “At time and place of occurrence, § 87(2)(b) sustained minor bruises to face while being subdued. § 87(2)(b) was in possession of crack cocaine, possession of box-cutter. § 87(2)(b) also charged for § 87(2)(b) for refusal to be handcuffed and fighting

Tour 3 Roll Call (enc. 32a-g)

The 61st Precinct Tour 3 Roll Call confirms that Sgt. Hansen and PO Carlton were working on the date of incident. Sgt. Hansen was the Anti-Crime Supervisor and PO Carlton was also assigned to the Anti-Crime team.

Command Log (enc. 33a-h)

The 61st Precinct Command Log for November 27, 2006 contains an entry at 19:20 hours documenting § 87(2)(b)'s arrest. Under physical/mental condition it says, "bruise to face".

Parking Summons (enc. 34)

PO Matthew Harrison issued summons § 87(2)(b) at 6:45PM on November 27, 2006 to § 87(2)(b) for parking at a fire hydrant.

§ 87(2)(b)'s Criminal History

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Civil Lawsuit Documents

According to § 87(2)(b) of the Comptroller's Office of the City of New York, as of April 12, 2007, § 87(2)(b) had not filed a notice of claim regarding this incident.

Officers' CCRB History

PO Carlton has 14 substantiated CCRB allegations from CCRB 9703497 (enc. 6a-b). Eight of those allegations were for force, two were for abuse of authority, and four were for discourtesy. For those substantiations, PO Carlton received a two-day suspension. Sgt. Hansen and PO Harrison have no substantiated CCRB allegations (encs. 5a-b, 7).

Conclusions and Recommendations

Officer Identification

§ 87(2)(b) identified Sgt. Hansen by name. He also provided physical descriptions of both Sgt. Hansen and his partner. Using police documentation, the CCRB identified Sgt. Hansen's partner as PO Sean Carlton. In their CCRB interviews, both officers confirmed that they were the officers who arrested § 87(2)(b).

§ 87(2)(b) stated that he saw a stocky white male officer with glasses write a parking ticket and place it on the windshield of his vehicle. § 87(2)(b) also stated that he saw that same officer enter and search his vehicle. The summons that § 87(2)(b) received was issued by PO Matthew Harrison from the 61st Precinct. In his CCRB interview, PO Harrison confirmed that he had written the summons, but stated that he did not search the vehicle.

Because Sgt. Hansen and PO Carlton were the officers who stopped § 87(2)(b) Allegations A and B are being pleaded against them. Because § 87(2)(b) stated that Sgt. Hansen and PO Carlton used physical force against him, Allegations C and D are also being pleaded against them. Because § 87(2)(b) could not identify or describe the officer who placed him in a chokehold, Allegation E is being pleaded against "an officer". Because § 87(2)(b) stated that the officer who issued the parking summons for his vehicle, PO Harrison, was also the officer who entered and searched his vehicle, Allegation F is being pleaded against him.

Undisputed Facts

It is not disputed that § 87(2)(b) parked his vehicle in front of a fire hydrant, that § 87(2)(b) went into an apartment in § 87(2)(b) to engage in a transaction, that PO Carlton punched § 87(2)(b).

§ 87(2)(b) in the face, that § 87(2)(b) defecated on himself, that § 87(2)(b) had a box-cutter in his pocket, that PO Harrison issued § 87(2)(b) a summons for parking at a fire hydrant.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Determination of Fact

This investigation determined that, on the date of incident, § 87(2)(b) parked his vehicle in front of a fire hydrant at § 87(2)(b) and then entered the building. § 87(2)(e), § 87(2)(f)

§ 87(2)(e), § 87(2)(f)

Upon seeing the officers, § 87(2)(b) swallowed the narcotics he had in his hand and attempted to run toward the door. The officers then used force to stop and restrain § 87(2)(b). PO Carlton punched § 87(2)(b) on the left side of his face, resulting in bruising and swelling. § 87(2)(b), § 87(2)(g)

Allegation A: Sgt. James Hansen stopped § 87(2)(b)

Allegation B: PO Sean Carlton stopped § 87(2)(b)

§ 87(2)(b) stated that Sgt. Hansen and PO Carlton stopped him as he stepped off of the elevator and entered the lobby of § 87(2)(b). The officers confirmed that they approached § 87(2)(b) in the lobby and stated that they blocked his pathway to the door, thus preventing him from leaving the building. § 87(2)(b) was not free to walk away. According to Kamins New York State Search and Seizure, “whenever an individual is actually or constructively detained by virtue of a significant interruption of his liberty of movement, the individual has been seized within the meaning of the Fourth Amendment. Before a person may be stopped in a public place, the officer must have a reasonable suspicion that the person is committing, has committed, or is about to commit a crime.” (enc. 1a-b) § 87(2)(g)

§ 87(2)(b) is a muscular black male, 5’7” tall and 156lbs with a slight mustache and goatee. On the date of incident he was wearing a red Yankees cap, a red hoodie, and black pants. § 87(2)(e), § 87(2)(f)

§ 87(2)(b) Sgt. Hansen and PO Carlton had some idea of who they would be looking for. Once they reached § 87(2)(b) the officers then each made their own independent identifications of § 87(2)(b). Sgt. Hansen saw a stocky black male, about 5’7” tall enter the building and he identified him as § 87(2)(b). PO Carlton then saw a black male, about 5’7” tall and 180lbs with a slight goatee or mustache and a red baseball cap enter the apartment where the informant was waiting and he identified the male as § 87(2)(e), § 87(2)(f)

§ 87(2)(b) Sgt. Hansen and PO Carlton then later saw the man whom they had both identified as § 87(2)(b) known to the CCRB as § 87(2)(b) step off of the elevator and into the lobby with crack in his left hand. The officers had not seen anyone else matching § 87(2)(b)s description enter the building or the apartment. § 87(2)(b), § 87(2)(g)

Kamins states that “an identified citizen, describing a person... at a specified location or a person who has just committed a violent crime, will provide the police with reasonable suspicion, especially when the defendant is the only person at the location fitting the description, when the description is sufficiently specific, when the information is corroborated by the officer’s observation, or when the suspect is in close spatial and temporal proximity to the crime. When the identified informant points out a suspect to the police, the police will have reasonable suspicion to detain the suspect... (enc. 2a-e)”. § 87(2)(e), § 87(2)(f)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that Allegations A and B be exonerated.

Allegation C: Sgt. James Hansen used physical force against § 87(2)(b)

Allegation D: PO Sean Carlton used physical force against § 87(2)(b)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b) stated that Sgt. Hansen and PO Carlton immediately approached him in the lobby, pushed him up against a wall, and then punched him in the head and torso and kicked him on the left side of the face. § 87(2)(b) stated that he did not know that Sgt. Hansen and PO Carlton were officers and also stated that he did not struggle or resist in any way, but curled up into a ball and tried to cover his head. Once § 87(2)(b) realized that Sgt. Hansen and PO Carlton were officers, he stretched out his body and allowed himself to be handcuffed. § 87(2)(b)'s injuries included swelling, contusions, and abrasions to the left side of the face and a torn right rotator cuff.

The officers stated that they identified themselves to § 87(2)(b) and approached him and that he came toward them swinging his fists. PO Carlton stated that § 87(2)(b) punched him and he, in return, punched § 87(2)(b) in the head. The officers then struggled with § 87(2)(b) and ended up on the floor. Once § 87(2)(b) was on the floor, he continued to struggle, so much so that Sgt. Hansen called for assistance. After struggling with § 87(2)(b) for a couple of minutes, the officers were able to place him in handcuffs. Both officers stated that they did not kick § 87(2)(b). During the course of trying to restrain § 87(2)(b) PO Carlton broke his right hand. PO Carlton documented the fact that § 87(2)(b) punched him in his Line of Duty Injury Report (enc. 22b) and also noted on the Omniform Arrest Sheet (enc. 20a-b) that he used physical force to restrain § 87(2)(b) § 87(2)(b), § 87(2)(g)

The Police Department's Guide to Street Encounters states that during a level III stop, "[An officer] is permitted to use reasonable force to stop and question a suspect. The suspect is not free to walk away. The type and amount of force used must ultimately be objectively reasonable under the attending circumstances facing the [officer]. Thus, the more violent the physical encounter, the greater the physical force that may be employed" (enc. 1c). Furthermore, the Police Student Guide's Scale of Escalating Force states that when faced with physical assault, an officer is permitted to use "impact techniques such as batons, fists, and feet" (enc. 4). § 87(2)(g)

Therefore, it is recommended that Allegations C and D be exonerated.

Allegation E: An officer used a chokehold against § 87(2)(b)

In addition to the other force that he alleged, § 87(2)(b) stated that either Sgt. Hansen or PO Carlton took his throat in the crook of their arm and choked him for 15 to 20 seconds. As a result, he defecated on himself. § 87(2)(b) was unable to say which of the two officers placed him in a chokehold.

§ 87(2)(g)

Therefore, it is recommended that Allegation E be unfounded.

Allegation F: Matthew Harrison searched the vehicle belonging to § 87(2)(b)

§ 87(2)(b) stated that he saw a stocky white male officer with glasses put a ticket on his windshield and then later saw that officer enter and search his vehicle. The summons that § 87(2)(b) received was issued by PO Matthew Harrison. § 87(2)(b) did not allege that his vehicle was searched in his phone statement to the CCRB on December 4, 2006, however, he did make that allegation in his statement to IAB on November 29, 2006 and during his CCRB statement on December 5, 2006.

During PO Harrison's CCRB interview, he confirmed that he was the officer who wrote and issued the summons, but stated that he did not search § 87(2)(b)'s vehicle. He also stated that he was not aware that the vehicle for which he issued the summons belonged to § 87(2)(b) PO Carlton and Sgt. Hansen stated that they did not believe that an officer searched § 87(2)(b)'s vehicle at the scene, but did recall that § 87(2)(b) asked an officer to take his vehicle to the precinct. The officers confirmed that it was later taken to the precinct and that one of § 87(2)(b)'s relatives came and picked it up there. § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that Allegation F be unsubstantiated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: